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IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

e.A. Case No: CA (PUC) 54/2010

H.C. Badulla Case No:
REV. 68/2009

M.e. Bandarawela Case No: 99791

. \ 1 n the matter of an appeal in terms of
Article 138 and Article 154P of the Constitution of the Democratie Socialist Republic of Sri Lanka read with the High Court of the Provinces (Special Provisions) Act No 19 of 1990.

H.M.M.U.B. Herath,
Assistant Commissioner,
Agrarian Development,

! Agrarian Development Department, t · Kappetipola Road,
Badulla.

Vs.

Applicant

W.M.Piyasena,
Waralwatta, KurundugoIla, MakuleIla, Bandarawela.
Respondent

AND BETWEEN

W .M.Pi yasena,
Waralwatta, Kurundugolla,

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I.

Makulella, Bandarawela.
Respondent-Petitioner
Vs.

H.M.M.U.B. Herath,
Assistant Commissioner,
Agrarian Development,
Agrarian Development Department, Kappetipola Road,
Badulla.
Applicant-Respondent

R.M. Samarasekara,
'Saman Niwasa', Kirimadugoda, Kinigama, Bandarawela.
Added-Respondent

AND NOW BETWEEN

W.M.Piyasena,
Waralwatta, Kurundugolla,
Makulella, Bandarawela.

Vs.

Respondent-Petitioner-
Appellant

H.M.M.U.B. Samarakoon,
Assistant Commissioner,
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Agrarian Development,
Agrarian Development Depmiment, Kappetipola Road,
Badulla.

Applicant-Respondent-
Respondent

R.M. Samarasekara,
' Saman Niwasa', Kirimadugoda, Kinigama, Bandarawela.
Added-Respondent-
Respondent

1. Manatunga Devayalage Misinona
2. Kumarihamy
3. Liliyannona
4. Wijesundara Mudiyanselage Ariyamala
5. Wijesundara Mudiyanselage Siriyalatha
6. Wijesundara Mudiyanselage Samaraweera

7. Wijesundara Mudiyanselage Manel Swamapali
8. Wijesundara Mudiyanselage
jayanthi Manel

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BEFORE

ARGUED ON

COUNSEL

WRITTEN SUBMISSIONS

DECIDED ON

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9. Wij esundara Mudiyanselage Nanda Manel

All of Waralwatta, KurundugoIla, Makulella, Bandarawela.

Substituted Respondent-Petitioner-Appellants

K. K. Wickremasinghe, J.

Jana'," De Silva, J.

16J)' i.2018

AAL Kuma Dunusinghe for the Substituted Respondent -Peti ti oner-Appellants

Avar thi Weerakoon, SC for the Applicant-Respondent -Respondent

W. Dayaratne, PC with AAL Nadeeshan Kekl'lawala for the Added Respondent-Respondent

Substituted Respondent-Petitioner-Appellants
- On 25.06.2018

The _Applicant-Respondent-Respondent-On 2 1.08.2018 & 13.12.2018

The ~~ nd Added Respondent-Respondent - On h5.09.2013 & 28.09.2018

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K.K. WICKREMASINGHE, J.
The Respondent-Petitioner-Appellant has preferred this appeal seeking to set aside the order of the Learned High Court l u ge of the Provincial High Court of Uva Province holden in Badulla dated 24.0).2010 in the Revision application No. Rev/68/2009 and to set aside the order of execution made by the Learned Magistrate of Bandarawela dated 22.07.2(109 in Case No. 99791.

Facts of the Case:

The Learned Magistrate of Bandarawela had made an order dated 22.07.2009 under case No. 99791 to evict the father of the substituted respondent-petitioner-appellants (hereinafter referred to as the 'appellant'), according to an application made by the applicant-respondent-resp :mdent (hereinafter referred to as the 'applicant-respondent') in terms of section 08 of the Agrarian Development Act No.46 of 2000 (hereinafter referred to as 'the Act'). On 30.03.2009, the District Office of the Agrarian Development at adulla had sent the appellant a notice of termination of tenant rights in terms of ction 2(4) of the Agrarian Development Act. The Learned Counsel for the app~llant submitted that the appellant was unaware of the contents of the said notic such as the sale of the paddy field and the decision. taken at the inquiry since the appellant was never informed of or never asked to participate in such an inquiry. Upon receiving the said notice, the appellant had filed a writ application in the Provincial High Court of Uva Province holden in Badulla under case No. HC Writ 36/2009, against the decision taken by the respondent. On the date of supporting the writ application, the appellant was directed by Court to withdraw the said application subject to filing a fresh application if the order was executed by Lle respondent. After the said withdrawal, the appellant was in continuous possession of the paddy land which was named as "Weralwatta".
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Thereafter, on 27.07.2009, the Fiscal of the Bandarawela Magistrate's COUlt along with police officers and army officers h d entered the said paddy land and had attempted to evict the appellant. The L arned Counsel for the appellant fUlther submitted that the appellant had no kIldwledge of change of ownership to the added respondent-respondent (hereinafter referred to as the 'added-respondent') and was unaware of any court proceedings related to the said Fiscal order.

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Thereafter, the appellant filed a revision ap:Jlication under case No. Rev/68/2009 in the Provincial High Court of Uva Provi lce holden in Badulla to revise and set aside the order of execution made by the Learned Magistrate of Bandarawela. On 24.02.2010, the Learned High Court Judge dismissed the revision application. Being aggrieved by the said dismissal, th appellant has preferred an appeal to this Court.

The Learned President's Counsel for the added respondent has objected to the maintainability of this application on following grounds;

I. There is no judicial order made by the Learned Magistrate for the appellant to challenge
2. The appellant does not have the rig~t. of appeal to come before this Court.

Accordingly the Learned President's Counsel contended that the Learned Magistrate has no jurisdiction to hold ar~ inquiry with regard to a written report filed in terms of section 8(2) of the Act since the Learned Magistrate's function is only a ministerial act. It was further submitted that in terms of Article 154 P (3) (b) of the Constitution the Provincial High Court has power to invoke the revisionary jurisdiction in respect of convictions, sen ences and orders entered or imposed by Magistrate's Courts or Primary Courts Hithin the province. Accordingly it was

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contended that the aforesaid order made ill terms of the Act does not fall within the purview of Article 154P (3).
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It is mandatory to refer to section 08 of the Act, which stipulates the procedure of eviction of a tenant cultivator by the Com issioner General, that reads;

Section 8(1): where any person who h:1s been ordered under this Act, by the
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Commissioner-General to vacate any ex ent of agricultural land, fails to comply

with such order, the Commissioner-Gene(.:.l1 or any other person authorized in that I

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behalf by the Commissioner-General ma) present to the Magistrate's Court within whose local jurisdiction such extent wholly or mainly lies, a written report-

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(a) setting out the nature of sud, order and the person to whom it was issued, describing the extent of lana' to which such order relates;

(h) stating that the person who ha ' been ordered to vacate has failed to so
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vacate such extent of land; and

(c) praying for an order to evid such person and all other persons in occupation of such extent of land) -om such extent, and stating the name of
the person to whom delivery ofposf. ession of such extent should be made.

Accordingly, the Commissioner General :.s required to make an order of vacation from an extent of a land and in the eveut of failure of such tenant cultivator to vacate from such land, the Commissioner General needs to present a 'written report' to Court in order to obtain an ordel of eviction.

Section 8(2) of the said Act states that "Where a written report is presented to a Magistrate's Court under subsection (1). such court shall direct the Fiscal 0" peace officer to forthwith evict the perso'1 specified in such report and all other persons in occupation of the extent of agricultural land specified in the order and Page 7 C!f 10

to deliver possession of such extent to the person mentioned in such report as the person to whom delivery of possession o/such extent should be made. "

The Learned Counsel for the appell nt contended that what was sent dated 30.03.2009 was not an order but a notice and the said notice was sent by Assistant Commissioner who had not substantiated any authorization or delegation of powers made by the Commissioner General. The Counsel further submitted that there was a vital error with regard to 1 he extent of paddy land mentioned in the notice which was different from the extcmt of paddy land occupied by the appellant and therefore the order made by the LE'"Lrned Magistrate cannot be executed with a non-existing extent of land within the land which the appellant was in possession.

In the case of Farook V. Gunawardena, Ampara Government Agent [1980J 2 SLR 243, it was held that,

"When the Legislature has made! express provision for any person who is aggrieved that he has been wronirully ejected from any land to obtain relief
by a process described in the Act itself, it is not for this Court to grant rehef 1
on the ground that the petitioner has not been heard. Where the structure of
the entire Act is to preclude investigations and inquiries and where it is expressly provided (a) the only defence that can be put forward at any stage of the proceedings under this Act can be based only upon a valid permit or written authority of the State and (b) special provisions have been made for aggrieved parties to obtain relief, f am of the opinion that the Act expressly precludes the need for an inquiry by the competent authority before he forms
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the opinion that any land is State land. "
We observe that section 08(2) of the A.ct does not empower the Magistrate to conduct an inquiry when a written report is filed in terms of section 8(1) of the Act.

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Therefore the Magistrate only functio ~ 3 as an authoritative body who directs the Fiscal or a peace officer to act in acc Jrdance with the report filled in terms of section 8(I). We observe that the Learned Magistrate has made the order In accordance with the provisions of th Act. Therefore the Learned High Court
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Judge was correct in refusing to revise '.the order of the Learned Magistrate due to , \ lack of exceptional circumstances.

In the case of A.A. Mohamed Tha aj V. The Assistant Commissioner of Agrarian Development, Badulla and :-mother ICA (PHC) APN 53/2013], it was held that,

The trend of authority clearly indicates that the revisionary powers of the Court of Appeal will be exercis d if the exceptional circumstances exist only ...

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The object of the power of revis'ion as stated by Sansoni Chief Justice in Mariam Beebee vs. Seyed Mohamed 68 N.L.R 36 is the due administration of justice "The Court will not hesitate to use its revisionary powers to give relief where a miscarriage of justice has occurred". (In the words of Soza .! in Somawathie vs. Madawala and Others J 983 (2) SLR J 5) ... I

Furthermore, in Dharmarathne mId Another vs. Palm Paradise Caballas Ltd; (2003) 3 SLR 24, Gamini Amaratunga J. stated, that the practice of Court to insist on the existence cfexceptional circumstances for the exercise of revisionary powers has taken G2ep root in our law and has got hardened into a rule which should not be lig~ tly disturbed. ~

On a consideration of the above authorities, it is abundantly clear, the revisionary powers of the COlo p,t of Appeal will be exercised if the exceptional circumstances exist ~ rzly. Thus. the existence of exceptional Page 9 of 10

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circumstances is a process by which the method of rectification should be adopted. "(Emphasis added)

In the case of Bank of Ceylon V. Kaleel and others [2004] 1 Sri L.R. 284, it was held that;
"In any event to exercise revisionary jurisdiction the order challenged must have occasioned a failure of justice and be manifestly erroneous which go beyond an error or defect or irregularity that an ordinary person would instantly react to it - the order complained of is of such a nature which would have shocked the conscience of court. "

Considering above, we see no reason to interfere with the order of the Learned High Court Judge of Badulla. Therefore we affirm the same.

Both parties agreed to abide by the same decision in case No. CA (PHC) 42/2010.

Accordingly this appeal is dismissed without costs.

JUDGE OF THE COURT OF APPEAL

Janak De Silva, J.

I agree,

JUDGE OF THE COURT OF APPEAL

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